

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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TERRANCE CARNEY,

Plaintiff,

COMPLAINT

Index No.:

-against-

THE CITY OF NEW YORK, and NEW YORK CITY POLICE
DEPARTMENT OFFICERS, DONAVIN O. FLOYD
FULMORE, and JOHN DOE, Individually and in their Official
Capacities as Police Officers,

Defendant.

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Plaintiff, by his attorneys, Georgaklis & Mallas, PLLC, complaining of the Defendants, state,
upon information and belief, as follows:

1. At all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, was and is a duly constituted municipal corporation organized and existing under the laws of the State of New York.

2. That prior to the commencement of this action, and on or about October 31, 2023, Plaintiff duly filed with Defendant, THE CITY OF NEW YORK, a Notice of Claim setting forth the time and place where the accident, which is the subject of this lawsuit occurred, the nature and extent of the injuries and the damages sustained, and the amount claimed.

3. The aforementioned claim was presented within ninety days of the occurrence.

4. On March 13, 2024, Plaintiff, TERRANCE CARNEY, appeared for a hearing pursuant to the General Municipal Law §50-H.

5. More than thirty days have elapsed since such presentation of the claim and the Defendant, THE CITY OF NEW YORK, has not adjusted the claim and has failed and neglected to make any payment.

6. The New York City Police Department (hereinafter “NYPD”) is a law enforcement agency of Defendant, THE CITY OF NEW YORK, operating within the City of New York.

7. Defendant, THE CITY OF NEW YORK, operated the NYPD at an address of 1 Police Plaza Path, New York, NY 10038.

8. Defendant, THE CITY OF NEW YORK, maintained and controlled the NYPD at an address of 1 Police Plaza Path, New York, NY 10038.

9. Defendant, THE CITY OF NEW YORK, is and was the employer of Defendant police officer, DONAVIN O. FLOYD FULMORE, a police officer with a Shield number of 5551.

10. Defendant, THE CITY OF NEW YORK, is and was the employer of Defendant police officer, “JOHN DOE” (“JOHN DOE” being a fictional name as the identity of the NYPD police officer is unknown), a police officer with an unknown Shield number.

11. At all times hereinafter mentioned, Defendant police officer, DONAVIN O. FLOYD FULMORE, was acting within the scope of his employment as a police officer with the NYPD.

12. At all times hereinafter mentioned, Defendant police officer, JOHN DOE, (being fictitious names as the identity of other employees of the defendants are in the sole and exclusive possession of the defendants), was acting within the scope of his employment as a police officer with the NYPD.

13. At all times hereinafter mentioned, Defendant police officer, DONAVIN O. FLOYD FULMORE, was acting under color of law and authority as police officer with the NYPD.

14. At all times hereinafter mentioned, Defendant police officer, JOHN DOE, was acting under color of law and authority as police officer with the NYPD.

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AS AND FOR THE FIRST CAUSE OF ACTION

15. Plaintiff repeats and re-alleges each and every allegation contained in Paragraphs “1” through “14” of this Complaint as if the same were more fully set forth in full herein.

16. The incident occurred on or about August 11, 2023, at approximately 11:00 p.m., while Plaintiff, TERRANCE CARNEY, was lawfully on the premises commonly known as Oxport Playground, 34 North Portland Avenue, in the County of Kings, in the City of New York, and State of New York.

17. On August 11, 2023, Plaintiff, TERRANCE CARNEY, was participating in lawful and peaceful recreational activities.

18. On August 11, 2023, Defendant police officer, DONAVIN O. FLOYD FULMORE, without any legal basis, reasonable suspicion or probable cause, approached, assaulted, and arrested the plaintiff.

19. On August 11, 2023, Defendant police officers, JOHN DOE, without any legal basis, reasonable suspicion or probable cause, approached, assaulted, and arrested the plaintiff.

20. On August 11, 2023, Defendant police officer, DONAVIN O. FLOYD FULMORE, approached, assaulted, and arrested the plaintiff.

21. On August 11, 2023, Defendant police officer, JOHN DOE, approached, assaulted, and arrested the plaintiff.

22. Defendant, DONAVIN O. FLOYD FULMORE, without any legal basis, reasonable suspicion or probable cause violated the Plaintiff's fourth amendment rights, as incorporated against the states through the fourteenth amendment.

23. Defendant, JOHN DOE, without any legal basis, reasonable suspicion or probable cause violated the Plaintiff's fourth amendment rights, as incorporated against the states through the fourteenth amendment.

24. On August 11, 2023 at the time of the alleged occurrence, the individual Defendant police officer, DONAVIN O. FLOYD FULMORE, was an agent, servant and employee of the Defendant, THE CITY OF NEW YORK, and was acting in furtherance of the scope of his employment, acting under color of statutes, ordinances, regulations, policies, customs, and usages of the State of New York, and Defendant, THE CITY OF NEW YORK, and acting in his individual and official capacity.

25. On August 11, 2023 at the time of the alleged occurrence, the individual Defendant police officer, JOHN DOE, was an agent, servant and employee of the Defendant, THE CITY OF NEW YORK, and was acting in furtherance of the scope of his employment, acting under color of statutes, ordinances, regulations, policies, customs, and usages of the State of New York, and Defendant, THE CITY OF NEW YORK, and acting in his individual and official capacity.

26. On August 11, 2023, while the Plaintiff, TERRANCE CARNEY, was in the custody of the Defendants, he was caused to be negligently, intentionally, wrongfully, willfully, maliciously, and with gross negligence, physically assaulted, by Defendants and was caused to sustain severe and permanent physical injuries.

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27. That by reason of the foregoing, the Plaintiff, TERRANCE CARNEY, was injured.

28. As a result of the aforementioned occurrence, Plaintiff, TERRANCE CARNEY, sustained serious and severe permanent personal injuries, and sustained conscious pain and suffering; was rendered sick, sore, lame and disabled, and sustained injuries of a permanent and lasting nature; was and continues to be obliged to incur and expend large sums of money for medical care and attention in an endeavor to cure himself from the injuries he sustained; and was and continues to be incapacitated from attending to his usual occupation and activities.

AS AND FOR THE SECOND CAUSE OF ACTION

29. Plaintiff repeats and re-alleges each and every allegation contained in Paragraphs “1” through “28” of this Complaint as if the same were more fully set forth in full herein.

30. On August 11, 2023, while Plaintiff, TERRANCE CARNEY, was lawfully present at the aforementioned location, he was unlawfully detained by employees, agents and/or servants of defendant, THE CITY OF NEW YORK, its agencies, agents, servants, and/or employees, including Defendant police officer, DONAVIN O. FLOYDFULMORE.

31. On August 11, 2023, while Plaintiff, TERRANCE CARNEY, was lawfully present at the aforementioned location, he was unlawfully detained by employees, agents and/or servants of defendant, THE CITY OF NEW YORK, its agencies, agents, servants, and/or employees, including Defendant police officer, JOHN DOE.

32. That said unlawful detention was without justification and beyond the boundaries of reasonableness.

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33. That Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, including but not limited to Defendant police officer, DONAVIN O. FLOYD FULMORE, acted in bad faith and without justification in committing the aforesaid detention of Plaintiff.

34. That Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, including but not limited to Defendant police officer, JOHN DOE, acted in bad faith and without justification in committing the aforesaid detention of Plaintiff.

35. That Defendant, THE CITY OF NEW YORK, its agents, servants, and/or employees, including but not limited to Defendant police officers, DONAVIN O. FLOYD FULMORE, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

36. That Defendant, THE CITY OF NEW YORK, its agents, servants, and/or employees, including but not limited to Defendant police officers, JOHN DOE, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

37. That at the time of his unlawful detainment, Plaintiff had not committed any illegal act.

38. That at the time of his unlawful detainment, Plaintiff had not committed or attempted to commit any crime.

39. That at the time of Plaintiff's unlawful detainment, Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned detainment was false and without justification.

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40. That said unlawful detainment caused Plaintiff to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to his reputation.

41. That said unlawful detainment caused Plaintiff to suffer pain, shock, and mental anguish; these injuries and their effects will be permanent; as a result of said injuries the Plaintiff has been caused to incur and will continue to incur expense relative to his injuries.

42. The aforementioned occurrence took place due to the negligence of the Defendants, their agents, servants, or employees, acting within the scope of their authority, within the scope of their employment and in furtherance of their agency.

43. No negligence on the part of the Plaintiff contributed to the occurrence described herein.

44. Defendant, THE CITY OF NEW YORK, acting through their agents, servants and employees, failed and refused to use such care in the performance of their duties as reasonably prudent police employees would have used under similar circumstances.

45. Defendant, THE CITY OF NEW YORK, through its agents, servants and employees, negligently, knowingly, recklessly and intentionally breached its duty of reasonable care to the Plaintiff, thereby causing the Plaintiff injuries.

46. Defendant, THE CITY OF NEW YORK, through its agents, servants and employees, negligently, knowingly, recklessly and intentionally breached its duty of reasonable care to the Plaintiff, thereby causing the Plaintiff injuries.

47. As a consequence, thereof, Plaintiff, TERRANCE CARNEY, was injured.

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48. As a result of the foregoing, Plaintiff, TERRANCE CARNEY, suffered serious and severe emotional distress, personal injuries, loss of earnings and loss to his reputations.

49. As a result of the foregoing, Plaintiff, TERRANCE CARNEY, demands judgment against defendants in amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE THIRD CAUSE OF ACTION

50. Plaintiff repeats and re-alleges each and every allegation contained in Paragraphs “1” through “49” of this Complaint as if the same were more fully set forth in full herein.

51. The aforementioned Defendants used unnecessary and excessive force in apprehending the Plaintiff and caused Plaintiff to suffer serious permanent injuries.

52. The aforementioned Defendants used unnecessary and excessive force in detaining the Plaintiff and caused Plaintiff to suffer serious permanent injuries.

53. During the course of the unlawful stop, Defendant, THE CITY OF NEW YORK, its agents, servants, and/or employees, including but not limited to police officer, DONAVIN O. FLOYD FULMORE, used excessive and unnecessary force against the Plaintiff, including, but not limited to, pushing, pulling, grabbing, and violently shoving Plaintiff to the ground.

54. During the course of the unlawful stop, Defendant, THE CITY OF NEW YORK, its agents, servants, and/or employees, including but not limited to police officer, JOHN DOE, used excessive and unnecessary force against the Plaintiff, including, but not limited to, pushing, pulling, grabbing, and violently shoving Plaintiff to the ground.

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55. Plaintiff suffered the physical and psychic trauma, shock, debasement, fright and humiliation of being publicly subjected to unjustified assault at the hands of the Defendants.

56. At all relevant times, and in the excessive use of force, the Defendants herein acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

57. The Defendant police officer, DONAVIN O. FLOYD FULMORE's actions constitute unreasonable and excessive use of force without due process of law.

58. The Defendant police officer, JOHN DOE, actions constitute unreasonable and excessive use of force without due process of law.

59. Upon information and belief, at all times pertinent hereto, Defendant, CITY OF NEW YORK, permitted and tolerated a pattern and practice of unreasonable use of force by City of New York police officers.

60. The acts, omissions, systematic flaws, policies, and customs of Defendant, THE CITY OF NEW YORK, caused these police officers to believe that the excessive and unreasonable use of force would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force against Plaintiff and others in the future.

61. The acts, omissions, systematic flaws, policies, and customs of Defendant, THE CITY OF NEW YORK, caused these police officers to believe that the excessive and unreasonable use of force would not be aggressively, honestly, and properly investigated, with the foreseeable

result that officers are more likely to use excessive or unreasonable force against Plaintiff and others in the future.

AS AND FOR THE FOURTH CAUSE OF ACTION

62. Plaintiff repeats and re-alleges each and every allegation contained in Paragraphs “1” through “61” of this Complaint as if the same were more fully set forth in full herein.

63. At no time did Plaintiff attempt to physically assault any of the Defendants, including Defendant police officers, DONAVIN O. FLOYD FULMORE.

64. At no time did Plaintiff attempt to physically assault any of the Defendants, including Defendant police officer, JOHN DOE.

65. Nonetheless, when the said Defendants apprehended and/or detained the Plaintiff, they did assault and throw him to the ground sustaining causing him to sustain physical injuries.

66. Particularly, Plaintiff was assaulted by Defendant police officer, DONAVIN O. FLOYD FULMORE, who were police officers of the NYPD.

67. Particularly, Plaintiff was assaulted by Defendant police officers, JOHN DOE, who were police officers of the NYPD.

68. The aforementioned Defendants used unnecessary and excessive force while Plaintiff in apprehending and/or detaining the Plaintiff.

69. The above-described incident and resulting injuries to the Plaintiff were caused solely by reason of the carelessness and negligence of the Defendant police officer, DONAVIN O. FLOYD FULMORE, and no negligence of the Plaintiff contributed thereto in any manner.

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70. The above-described incident and resulting injuries to the Plaintiff were caused solely by reason of the carelessness and negligence of the Defendant police officers, JOHN DOE, and no negligence of the Plaintiff contributed thereto in any manner.

71. The aforesaid occurrence and the results thereof were due to and caused by the negligence of the Defendants and their agents, servants, or employees in negligently, carelessly, and recklessly causing, allowing and/or permitting the Plaintiff to be willfully, maliciously and with gross negligence physically detained, and assaulted

72. While the Plaintiff was in the custody of the Defendants, he was caused to be negligently, intentionally, wrongfully, willfully, maliciously, and with gross negligence, physically detained assaulted, by Defendants and was caused to sustain severe and permanent injuries.

73. The aforementioned occurrence took place due to the negligence of the Defendants their agents, servants, or employees, acting within the scope of their authority, within the scope of their employment and in furtherance of their agency.

74. The aforesaid occurrence and the results thereof were due to and caused by the negligence of the Defendants and their agents, servants, or employees in negligently, carelessly, and recklessly causing, allowing and/or permitting the Plaintiff to be willfully, maliciously and with gross negligence physically detained and assaulted.

75. As a result of the above-mentioned unprovoked assault, Plaintiff, was injured, internally and externally, became sick, sore, lame and disabled and was caused to suffer and still suffers severe and permanent injuries and upon information and belief, and will continue to suffer pain and discomfort.

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76. That by reason of the foregoing, the Plaintiff, TERRANCE CARNEY, was caused to sustain serious injuries and to suffer pain, shock, and mental anguish; these injuries and their effects will be permanent; as a result of said injuries the Plaintiff has been caused to incur and will continue to incur expense relative to his injuries.

AS AND FOR THE FIFTH CAUSE OF ACTION

77. Plaintiff repeats and re-alleges each and every allegation contained in Paragraphs “1” through “76” of this Complaint as if the same were more fully set forth in full herein.

78. The actions of Defendants heretofore described constitute an unlawful detainment, excessive force, assault and battery, all in violation of Plaintiff's civil rights.

79. Defendants violated Plaintiff's civil rights, including the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. Section 1981 and 1983.

80. Defendants deprived Plaintiff of his liberty in violation of his civil rights.

81. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

82. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK, and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

83. Defendants have failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues

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to this day.

84. Defendant, THE CITY OF NEW YORK, has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional rights of Plaintiff and others similarly situated.

85. That defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

86. As a result of the foregoing, Plaintiff, TERRANCE CARNEY, has suffered serious and severe emotional distress, personal injuries, loss of earnings and loss to his reputations.

87. As a result of the foregoing, Plaintiff, TERRANCE CARNEY, demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE SIXTH CAUSE OF ACTION

88. Plaintiff repeats and re-alleges each and every allegation contained in Paragraphs “1” through “87” of this Complaint as if the same were more fully set forth in full herein.

89. By reason of the foregoing, Defendant police officer, DONAVIN O. FLOYD FULMORE, intentionally or recklessly engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby intentionally inflicting mental and emotional distress upon the Plaintiff.

90. By reason of the foregoing, Defendant police officer, JOHN DOE, intentionally or recklessly engaged in extreme and outrageous conduct measured by the reasonable bounds of

decency tolerated by decent society thereby intentionally inflicting mental and emotional distress upon the Plaintiff.

91. As a result and proximate result of Defendants' actions, Plaintiff sustained severe and physical injuries, emotional distress, and other damages.

92. The actions of the Defendants to the Plaintiff were outrageous and beyond any norms acceptable to society.

93. As a consequence, thereof, Plaintiff, TERRANCE CARNEY, was injured.

94. As a result of the aforesaid, Plaintiff, TERRANCE CARNEY, has been damaged in a sum that exceeds the jurisdictional limits of all lower Courts to be determined by a jury at the time of trial.

AS AND FOR THE SEVENTH CAUSE OF ACTION

95. Plaintiff repeats and re-alleges each and every allegation contained in Paragraphs "1" through "94" of this Complaint as if the same were more fully set forth in full herein.

96. On August 11, 2023, Defendant police officer, DONAVIN O. FLOYD FULMORE, who is named individually and in his official capacity was and is a natural person employed by the Defendants, NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, as a duly appointed police officer.

97. On August 11, 2023, the Defendant police officer, DONAVIN O. FLOYD FULMORE, was on duty and assigned to a Precinct in the County of KINGS and serving under, Badge number 5551.

98. On August 11, 2023, with respect to the allegations herein Defendant police officer, DONAVIN O. FLOYD FULMORE, acted under color of state law at all times.

99. On August 11, 2023, Defendant police officer, JOHN DOE, who is named individually and in his official capacity was and is a natural person employed by the Defendant, THE CITY OF NEW YORK, as a duly appointed police officer.

100. On August 11, 2023, the Defendant police officer, JOHN DOE, was on duty and assigned to a Precinct in the County of Kings and serving under an unknown shield number.

101. On August 11, 2023, with respect to the allegations herein police officer, JOHN DOE, acted under color of state law at all times.

102. Upon information and belief, Defendant, THE CITY OF NEW YORK, through its agents, servants, and employees, owed a duty of care to this Plaintiff to prevent the physical and mental abuse sustained by Plaintiff.

103. Upon information and belief, Defendant, THE CITY OF NEW YORK, through Defendants police officer, DONAVIN O. FLOYD FULMORE, owed a duty of care to this Plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to this Plaintiff or to those in a like situation would probably result from this conduct.

104. Upon information and belief, Defendant, THE CITY OF NEW YORK, through Defendants police officer, JOHN DOE, owed a duty of care to this Plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated

that an injury to this Plaintiff or to those in a like situation would probably result from this conduct.

105. Upon information and belief, Defendant police officer, JOHN DOE, was unfit and incompetent for his position.

106. Upon information and belief, Defendant police officer, DONAVIN O. FLOYD FULMORE, was unfit and incompetent for his position.

107. Upon information and belief, Defendant, THE CITY OF NEW YORK's, negligence in hiring and retaining Defendant police officer, JOHN DOE, proximately caused the Plaintiff's injuries.

108. Upon information and belief, Defendants, THE CITY OF NEW YORK's, negligence in hiring and retaining Defendant police officer, DONAVIN O. FLOYD FULMORE, proximately caused the Plaintiff's injuries.

109. Defendant, CITY OF NEW YORK, failed to properly train, supervise, and discipline, Defendant police officer, DONAVIN O. FLOYD FULMORE, thereby exhibiting deliberate indifference to Plaintiff's constitutional rights and causing the injuries suffered by Plaintiff.

110. Defendant, CITY OF NEW YORK, failed to properly train, supervise, and discipline, Defendant police officer, JOHN DOE, thereby exhibiting deliberate indifference to Plaintiff's constitutional rights and causing the injuries suffered by Plaintiff.

111. The limitations on liability set forth in CPLR Section 1601 do not apply

112. The limitations on liability set forth in CPLR Section 1601 do not apply by reason of one or more of the exemptions set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demand judgment against the Defendants, and each of them, on the First through Seventh Causes of Action in a sum that exceeds the jurisdictional limits of all lower Courts to be determined by a jury at the time of trial, together with the costs and disbursements of the within action.

Dated: Brooklyn, New York
August 5, 2024

GEORGAKLIS & MALLAS, PLLC



By: Gregory S. Lombardi, Esq.
Attorneys for Plaintiff
9118 Fifth Avenue
Brooklyn, New York 11209
(718) 238-2400

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VERIFICATION

Gregory S. Lombardi, an attorney duly admitted to practice in the State of New York affirms the following under penalties of perjury:

I am a partner at Georgaklis & Mallas, PLLC, attorneys for the Plaintiff in the captioned action. I have read the foregoing and know the contents thereof. Upon information and belief, I believe the matters alleged therein to be true.

The source of my information and the grounds for my beliefs are communications, papers, reports and investigations contained in the litigation file.

Dated: Brooklyn, New York
August 5, 2024



GREGORY S. LOMBARDI

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